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The Court of Justice of the European Union and Integration Through Law

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Introduction

One of the most intriguing enigmas of European integration history is found in the role of the European Union's (EU) judiciary. Former Commission President Walter Hallstein once remarked, 'Previous attempts to unify Europe depended on force or conquest ... The majesty of the law is to achieve what centuries of "blood and iron" could not' (1972, 30). Law, the product of reasoned debate and compromise and instrument of equal regulation and treatment, would be the means through which peace and unity could be achieved in Europe. A court would achieve through enlightened deliberation that which centuries of violence and bloodshed could not. While the political institutions of the EU have grappled, sometimes in vain, with recalcitrant member-state governments and charismatic nationalist leaders and even eventually struggled to win legitimacy with the European people, the Court of Justice of the European Union (CJEU) seems to have emerged as the one unquestionably authoritative supranational institution.

The CJEU's case law, or *jurisprudence constant* to capture the Court's own phrasing, has established the direct effect of the EU treaties (in some cases its legislation also) and, on those occasions where member-state and EU law find themselves in conflict, the primacy of EU law as well. This combination created a 'new legal order' of a type unseen before in legal

history – a binding supranational legal system. Moreover, the CJEU's decisions have built out a human rights jurisprudence for the EU, and as the competencies of the Union have evolved, the CJEU's authority is felt ever more closely in the daily lives of the EU's citizens. All in all, the CJEU's activism is said to have transformed the international treaties of the EU into a working constitution in all but name, with binding treaty obligations and the CJEU itself acting as the Union's ultimate constitutional arbiter (Weiler 1999). Whilst ostensibly a political process, Europe has been integrated through law, a reality captured in Hallstein's famous comment in the opening paragraph of this chapter. This finding is, in essence, the heart of the scholarly agenda known as Integration Through Law (ITL). This title originates in the field-defining work of Cappelletti, Seccombe and Weiler (1986b), whose collective efforts in comparing the federal experiences of the United States and the EU became the launching pad for generations of students and scholars of EU law.

Given the importance of the CJEU for European integration and the opacity of the CJEU's decision-making process, in which the CJEU issues opinions as a single college and deliberations are not published, various explanations from across a range of scholarly disciplines have been developed seeking to explain the CJEU's success. Legal scholars allude to the 'benign neglect' enjoyed by the CJEU as an institution in its early years during which its foundational case law could be built (Stein 1981), the inevitable logic of treaty law, in which inducing ever closer union between the member states was written into the CJEU's very own DNA, as well as the cold determinacy of legal reasoning: What other decisions could a court have possibly reached given the facts in the cases before it? Alternatively, political science theories have drawn from the different time frames of judicial and political actors (Alter 2001), principal-agent dynamics in which the court (the 'agent') expanded its powers beyond the parameters established by member states (the 'principals') (Pollack 2003), the empowerment of lower courts and other legal actors (Garrett 1995), as well as the unspoken self-interests of the member-state governments, who reap the benefits of deeper integration forged by the CJEU's rulings but struggle to sell legal concessions to political opponents and reluctant electorates (Moravcsik 1998). Finally, sociologists have pointed to the development of new transnational networks of legal elites working in the blurred lines of national and supranational governance, forging a new realm of power for themselves and their allies (Vauchez 2010).

It has only been during the past decade or so that historians have finally started to find and analyse the original sources that explain what really happened in and around the CJEU. This 'new history' of EU law (Davies and Rasmussen 2014) reveals a historical reality more complicated and indeterminant than imagined by ITL scholarship. It describes conflicting patterns of resistance and support, neglect and interest across time and geography by a broad variety of actors. It has highlighted both those actors

with a grand design for Europe's legal future and those who have opposed this either intentionally or inadvertently. This new history has focused on both contextually and critically readdressing the theoretical assumptions of the ITL canon (Davies and Nicola 2017). This chapter will provide a detailed outline of the findings of the new history within this broader scholarly context and point to areas yet to be answered by historical research. In doing so, it reveals the core dynamic at the heart of scholarship surrounding the CJEU, namely that the scholarship places the Court both at the heart *and* at the periphery of its focus. This means being sure the CJEU as a judicial institution working within the broader framework of European integration is the main focus of inquiry. But at the same time, the arguments around the Court – supporters and detractors of its jurisprudence, different epistemic communities studying the institution – are just as much a subject of inquiry as the Court itself.

1. The Court, its competencies and identity

The CJEU is the highest judicial authority within the EU. Sitting as part of a complex network of member-state courts and tribunals large and small, the CJEU is responsible for the observance of law and the interpretation and application of the treaties. It is one of the original institutions of the integration project, created as part of the European Coal and Steel Community (ECSC) by the Treaty of Paris in 1952. The CJEU's composition and competencies have expanded together with the Union itself and are detailed in Articles 251–81 of the Treaty on the Functioning of the European Union (TFEU).[1] The CJEU has three main judicial functions: it reviews the legality of the acts of the institutions of the EU; it ensures that the member states comply with their treaty obligations; and, most importantly for understanding the *historical* significance of the CJEU, it interprets EU law at the request of the national courts and tribunals through a Preliminary Ruling Procedure (Art. 267 TFEU). The CJEU consists of two separate courts: the European Court of Justice (ECJ) (since 1952), the EU's highest court; and the General Court (since 1988), composed of two judges per member state and acting as court of first instance for direct actions brought by member states and individuals, with some exceptions.

At first glance, a comparison between the US Supreme Court and the CJEU – both highest courts in complex federal polities – would seem worthwhile. While the two panels do indeed address some common issues, the CJEU is a unique institution in its own right. Several qualities and characteristics make the Court standalone, beyond easy comparison with any other court in the world. Based in Luxembourg and working in French, the CJEU's highest gremium, the ECJ, is home, post-Brexit, to twenty-seven judges, one from each of the member states. Judges are appointed for six-year terms, based on selection from the member-state governments and approval

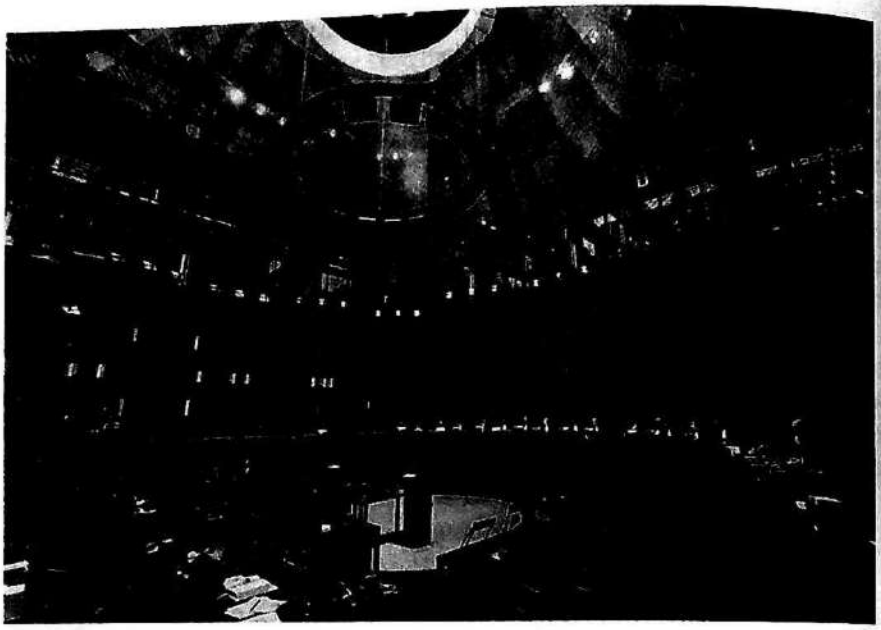

FIGURE 6.1 *A hearing of the Court of Justice Grand Chamber. Courtesy of Court of Justice of the European Union.*

through a judicial selection panel (Art. 255 TFEU). The Court adjudicates in panels ('chambers') of three, five or (rarely) fifteen members (Figure 6.1).

The Court issues opinions with a single voice, neither detailing judicial voting nor publicizing deliberations in the case. This is a result partially of the short-term limit of the judges (compared with lifetime appointments on the Supreme Court) and the delicate nature of the (re)appointment process and its dependence on selection by national authorities. The secrecy affords some levels of independence against national scrutiny and has also shielded EU judges from the kinds of public-political cross-examination placed on their US counterparts. This works both in the present and in the past, with deliberative documents emanating from the Court's archives being censored for current-day scholars. The Court's functioning is assisted by eleven advocate generals, whose role it is to participate in cases and to formulate non-binding opinions for the Court to consider prior to formal judgement. Behind the scenes, the Court is aided by a formidable bureaucracy led by the Court's registrar. Of particular importance in this machinery are the 'lawyer-linguists' who are necessary due to the multilingual nature of EU law and the specialized nature of the Court's institutional competencies.

However, beyond the idiosyncrasies within the institution itself, what really makes the CJEU unique is the network of interlocuters that engage in the EU legal system and enable the Court's decision-making. Far and

away, the majority of the CJEU's roughly sixteen hundred annual cases are issued in response to questions from member-state judges dealing with issues they perceive to be within the jurisdiction of the CJEU. To ensure the uniform application of EU law across an entity with half-a-billion citizens and multiple official languages, the treaties have included from the start a mechanism that allows member-state courts to stay a proceeding before it and to request a 'preliminary ruling' on any case in which EU law could be involved. The CJEU has broadly interpreted what constitutes a court or tribunal in the EU, effectively extending its hand out to a huge network of judicial actors, large and small. It has been in response to Preliminary Ruling questions from lower national courts (as opposed to high courts and other courts of last instance) that the CJEU has been able to build out its constitutional interpretation of the treaties. In this vein, the most significant examples of the Court's jurisprudence have been in response to Preliminary Ruling requests from a Dutch tariff commission (Case 26–62 *Van Gend en Loos v. Nederlandse Administratie der Belastingen*) and a Milanese justice of the peace (Case 6–64 *Costa v E.N.E.L.*). This cooperative dialogue between judicial panels has allowed European 'Integration Through Law' to proceed to some degree insulated from the pressures of political compromise and created a capability for national enforcement of EU law that does not exist at the supranational level.

2. The 'Constitutional Revolution' of Integration Through Law

At the heart of the ITL claims that the CJEU successfully constitutionalized the EU treaties are two foundational cases. The first of these resulted from a Preliminary Ruling request from the Netherlands in 1962. In this case, Case 26–62 *Van Gend en Loos v. Nederlandse Administratie der Belastingen* (hereon: *Van Gend*), the CJEU was able to rule that under certain conditions – clarity and unconditionality – EU law was 'directly effective' – granting rights and obligations for legal subjects within member states that were enforceable by national courts. Drawing on the general 'scheme and spirit' of the Treaty of Rome, the CJEU found grounds to consider EU law an entirely 'new legal order', different from the norms of international law, which, generally speaking, applies to governments only. The Court wrote in its decision:

> The conclusion to be drawn ... is that the Community constitutes a new legal order in international law, for the benefit of which the states have limited their sovereign rights, albeit within limited fields, and the subjects of which comprise not only Member States but also their nationals. Independently of the legislation of Member States, *Community law*,

> therefore *not only imposes obligations on individuals but is also intended to confer upon them rights which become part of their legal heritage.* These rights arise not only when they are expressly granted by the Treaty, but also by reason of obligations which the Treaty imposes in a clearly defined way upon individuals as well as upon the Member States and the institutions of the Community. (Emphases added)

In stating this, the CJEU empowered businesses of all kinds and even individuals to seek use of the Preliminary Ruling mechanism in national courts to enforce their newly granted rights under the EU treaties. Through *Van Gend* and the Preliminary Ruling mechanism, EU law became an integral part of national legal systems.

The inevitable question to arise from this was: if EU law and national law both imposed duties and rights on citizens, what was to happen in cases of conflict? The CJEU answered this by establishing the doctrine of legal primacy in the Case 6–64 *Costa v. E.N.E.L.* (hereon: *Costa*) in 1964. Reinforcing the 'originality' of EU law as a distinct and new legal order, the Court stated:

> By contrast with ordinary international treaties, the Community treaty has created its own legal system which, on the entry into force of the treaty, became an integral part of the legal systems of the member states and which their courts are bound to apply. By creating a Community of unlimited duration, having its own institutions, its own personality, its own legal capacity and capacity of representation on the international plane and, more particularly, real powers stemming from a limitation of sovereignty or a transfer of powers from the states to the community, the member states have limited their sovereign rights and have thus created a body of law which binds both their nationals and themselves ... The law stemming from the treaty, an independent source of law, could not because of its special and original nature, be overridden by domestic legal provisions, however framed, without being deprived of its character as community law and without the legal basis of the community itself being called into question.

If the *Van Gend* decision integrated the Rome Treaties into member-state legal systems, then *Costa* granted EU law precedence in cases of conflict between the two. According to the logic of the CJEU, the treaties had explicitly created a special community, which pooled national competencies in institutions to carry out a specific purpose on behalf of the member states. How could such a community carry out its clearly stated purpose without having such powers? Such decisions are inherent in the very ontology of the EU.

Subsequent decisions of the CJEU further extended and deepened these doctrines (Table 6.1), extending primacy to apply not only to national

Table 6.1 *Timeline of key legal developments in the European Union, 1952–93. Shaded rows refer to the Integration Through Law debate*

18 April 1951	The Treaty of Paris ratified between France, Italy, West Germany and the three Benelux countries (Belgium, Luxembourg and the Netherlands), establishing the ECSC
1952	The European Court of Justice is established through the Treaty of Paris
1952–54	Creation and failure of the European Defence Community and European Political Community
21 December 1954	First hearing at the European Court of Justice: Case 1–54 *France v. High Authority* of the ECSC
25 March 1957	The Treaty of Rome (or EEC Treaty) signed to bring about the creation of the European Economic Community (EEC), the best known of the European Communities, as well as and the European Atomic Energy Community (Euratom)
12–14 October 1961	Establishment of the International Federation of European Law (FIDE), an academic association designed to promote the study of EU law
22 January 1963	French veto of British entry to the European Communities
5 February 1963	Judgement of *Van Gend*, establishing the doctrine of direct effect, creating enforceable rights and obligations from European law enforceable by national courts
15 July 1964	Judgement of *Costa*, establishing the doctrine of the primacy of European law over national law
July 1965–January 1966	Empty Chair Crisis and French boycott of the Communities. Resolved through the Luxembourg Compromise, preserving national veto in the European legislative process
27 November 1967	Second French veto of British entry

(continued)

Table 6.1 *(continued)*

17 December 1970	Judgement of *Internationale Handelsgesellschaft*, reinforcing the primacy of European law even against national constitutional law and confirming the existence of human rights in European law inspired by the traditions within the member states
31 March 1971	Judgement of *ERTA*, creating the doctrine of implied powers allowing European regulation beyond explicit competence from the treaties
1 January 1973	Accession of Britain, Denmark, Ireland
18 December 1973	Judgement of *Frontini* (Italian Constitutional Court), establishing limits on the supremacy of European law in Italy, particularly in regard to fundamental principles of constitutional law
29 May 1974	Judgement of *Solange I* (German Constitutional Court), withholding the right of the German Constitutional Court to rule on the constitutionality of European law for as long as the European Communities lacked an equivalent fundamental rights catalogue approved by a democratically elected body
4 December 1974	Judgement of *Van Duyn*, expanding the doctrine of direct effect
20 February 1979	Judgement of *Cassis de Dijon*, establishing mutual recognition of trade standards and further prohibiting restrictions on European trade
7–10 June 1979	First direct elections of the European Parliament held
13 December 1979	Judgement of *Hauer*, in which the CJEU cited both the European Convention of Human Rights and national rights traditions as its own human right standard
1 January 1981	Accession of Greece
January 1981	Publication of Eric Stein's 'Lawyers, Judges, and the Making of a Transnational Constitution' in the *American Journal of International Law*
December 1985	Publication of Book 1 of Cappelletti, Seccombe and Weiler's (1986b) *Integration Through Law* project
1 January 1986	Accession of Spain and Portugal

Table 6.1 *(continued)*

17 and 28 February 1986	Single European Act signed
23 April 1986	Judgement of *Les Verts*, in which the Court of Justice first refers to the treaties as its 'constitutional charter'
1 June 1986	Publication of Hjalte Rasmussen's *On Law and Policy in the European Court of Justice*, one of the prominent critiques of perceived activism by the CJEU and a scholarly counterweight to the ITL school
22 October 1986	Judgement of *Solange II* (German Constitutional Court), lifting the German court's review of the constitutionality of European law domestically, given the direct elections to the European Parliament and the improvements in CJEU's rights jurisprudence (see *Hauer* above)
24 October 1988	Court of First Instance instituted
10 November 1989	Fall of the Berlin Wall
1 November 1993	Maastricht Treaty on European Union becomes law

legislation but also to constitutional law (Case 11–70 *Internationale Handelsgesellschaft*), establishing a notion of pre-emptive power (Case 22–70 *ERTA*) and extending direct effect, with some conditions, to secondary EU legislation (Case 41–74 *Van Duyn*), beyond the treaties and the explicitly provisioned direct effectively EU regulations (Art. 288 TFEU). Seen in totality, the CJEU's actions represent a massive erosion of national sovereign competencies, over and above those explicitly conceded in the foundational treaties of European integration. How could the Court achieve these in-roads into powers that member-state governments would typically only surrender very reluctantly? Which forces allied with the CJEU to sell its vision of a European legal system, and in contrast who resisted it and why?

3. Explaining the CJEU's success

This legal revolution was brought to widespread scholarly attention in the late 1970s by the work of Eric Stein, an international law professor and European Jewish emigree working at the University of Michigan Law School. Claiming that the revolution had occurred without much fanfare with the CJEU 'tucked away in the fairyland Duchy of Luxembourg

and blessed ... with benign neglect by the powers that be and the mass media', Stein (1981, 1) argued that the revolution was a sea change in Europe's history and the CJEU's interpretation of the treaties should be defended and protected by the legal community. Taking up the gauntlet a few years later, Mauro Cappelletti, professor of law at the European University Institute (EUI) and Stanford University, began a substantial research project entitled 'Integration Through Law: Europe and the American Federal Experience' (Cappelletti, Seccombe and Weiler 1986b). Cappelletti was joined by Monica Seccombe and Joseph Weiler, both fellow scholars at the EUI, in a comparative analysis of the EU and US legal systems. Ultimately, the project concluded, with Stein, that the CJEU had indeed fashioned a constitutional system, quasi-federal in nature, akin to both the United States and other explicitly federal entities. The Court had achieved what the politicians could not – functioning European federalism in all but name, with the potential for further integration in the future.

Joseph Weiler, Cappelletti's junior companion on the ITL project, continued his analysis of the EU legal system into the 1990s and became the champion of the ITL idea. In a series of writings, which served as a source of inspiration for a whole generation of subsequent scholars, Weiler highlighted the notion that perhaps the member-state governments had turned a blind eye to the revolution emanating out of the Grand Duchy because at around the same time in the mid-1960s, the governments had gained a veto in the legislative Council of Ministers via the Luxembourg Compromise (Weiler 1999). The spaces in which the CJEU had made escape from treaty obligations impossible were compensated by the fact that the member states now had seized firm control of the EU's legislative process by requiring unanimity in the adoption process. But as such, subsequent developments in European integration, especially the Single European Act of 1986, which reintroduced qualified majority voting and ended the need for unanimity in the Council, might fracture the equilibrium achieved in the mid-1960s by emphasizing the strength of legal obligations imposed on member states, who may not have wished to have supported the legal obligation in the first place. In effect, Weiler went beyond the original ITL project by emphasizing that the legal revolution was not just legal but essentially political in nature too.

Weiler's work evolved in an entirely different landscape in European integration history, with the formal creation of the 'Union', citizenship and a common currency through the Maastricht Treaty in 1993, as well as the problematic, vitriolic ratification of the treaty in many of the member states. The 'pillar system' of the Maastricht agreement had locked the CJEU out of foreign and security policy and justice and home affairs, both of which stayed firmly in the competency grasp of the member states. It certainly seemed that Weiler's prediction of the end of the passive acceptance of the CJEU's revolution was coming to an end.

Galvanized by the insights of Weiler on the inherently political nature of the legal revolution, international relations (IR) scholars and political scientists began to construct theoretical vehicles to explain not *if* EU law had been constitutionalized but *how* it had come to be so. Different schools emerged to resolve this quandary. Realists co-opted the rational-choice model approximated the intergovernmental theory in IR scholarship by emphasizing the delegated nature of the CJEU's authority, which merely carried out a specialist role that the member states do not wish to undertake themselves (Garrett 1995; Moravcsik 1998). The CJEU's agenda consisted of extending 'the ambit of European law and [its] authority to interpret it', while at the same time winning the 'acquiescence' of member states' governments for its declarations (Garrett 1995, 173). The Court would not afford provoking the member states into collective responses which might circumscribe the Court's authority. As such, the CJEU was an inherently political animal, conscious not only of the formal legal logic of the case before it but also of the interests and potential reactions of the broader forces at work. In a similar vein, theorists employed models of delegation and agency to demonstrate the potential overreach of the CJEU in its constitutionalization agenda, resulting in claims of a 'democratic deficit', which might cause the principals (member states) to tighten controls over their agent (CJEU) (Pollack 2003).

In contrast, theorists of the Functionalist school emphasized the dynamics of integration beyond the control of the member states and diminished the possibility that any one government within the EU had a monolithic set of interests on which they chose to act. Rather, the success of the CJEU could be explained through its mobilization of subnational actors, such as lower national courts, and transnational, pro-EU legal elites, who had a vested self-interest in the development of a burgeoning EU legal practice. Interaction between the CJEU and these groups occurred through the ever-increasing number of Preliminary Ruling requests. Scholars such as Mattli and Slaughter (1995) cited the exponential growth in Preliminary Rulings as proof of not just how the system worked efficiently, but also how the momentum of successful Preliminary Rulings promoted its ever-wider use by lower national courts. Such self-sustaining 'spillover' of successful tactics is typical of Functionalist accounts of European integration and suggested, by extension, that the legal revolution would continue even in the face of member-state reluctance because any 'backlash' would necessitate highly coordinated, and therefore unlikely, national resistance.

More cautiously, Karen Alter's (2001) account of the establishment of the primacy doctrine in the early 2000s highlighted the fact that the legal revolution had *not* taken place without resistance. In fact, the judiciaries of France and Germany, the two largest member states, had indeed reacted to the CJEU's decisions and had pushed back against what was perceived to be overreach by the Luxembourg court. Alter's ground-breaking work was based heavily on empirical research, including interviews with key actors

in the early years – now out of office and more able to speak freely to scholars. This more contextualized approach to EU law became a source of inspiration for historians, who had been socialized into the legal and political science scholarship explaining the CJEU's success but who wanted to test the theoretical assumptions against the sources that might emerge from national and European archives.

4. The Court in context: A new history of EU law

In the early 2000s, historical studies of the CJEU's jurisprudence as well as the subsequent academic, political and public debates of those decisions, based on the utilization of archival source materials and employing historical methodologies, began to appear. It soon became apparent that a wealth of archival materials existed in a variety of national archives (different actors dealt with EU law in different member states), European archives (particularly those of the European Commission and its Legal Service) and even private archives of key participants in the Court's key decisions. Such breadth in source material possibilities was particularly necessary in the writing of EU legal history due in part to the fact that much of the CJEU's success rested on its need for its decisions to be received by the wider academic, political and public audience, but also more pragmatically that the CJEU could not open its own archive until safeguard measures were implemented to protect the sacrosanct nature of judicial deliberations that may have been included in any archival deposits. The CJEU decided it was ready to open its archive in 2014. By this time, initial historical scholarship had begun to mine the rich lodes of information that were found in other archives around that of the Court's. Archival materials employed by historians of EU law included the classic documents of legal history generally, including judicial decisions, case materials (where available), treaty negotiation documents and writings by judges and lawyers. They also extended beyond to incorporate private archival materials, such as letters, diaries and oral histories, academic texts and speeches, bureaucratic archives of national agencies and, in some cases, newspaper and other media sources. In most cases, historical research has been limited in temporal scope by archival provisions to end at the year thirty years prior to the present one.

The first published histories of the Court's decision-making hinted at the fact that the perceived success of the CJEU in integrating Europe through law and in constitutionalizing the treaties may have been overstated. These historical accounts demonstrated clearly that Stein's 'benign neglect' had never really existed and that the member states and the national judiciaries had contested the CJEU's decisions from the onset. In fact, histories of the very earliest phase of EU legal history demonstrated that even before the

legal revolution of the mid-1960s, contestation about the future nature of EU law was occurring in all the member states (Boerger 2012; Davies 2015). This contestation eventually morphed into judicial resistance by national judiciaries, in which the 'constitutional paradigm' espoused by the CJEU, and a wider alliance of actors, remained an aspiration that was never fully accepted without condition by the member-state judiciaries. What made the whole environment so complex and interesting is the fact that national resistance occurred in different forms, according to different national legal cultures, on different issues and at different times. Different national contexts and legal traditions have resulted in varying conditions being placed on the acceptance of the constitutional paradigm. With such a disparate, patchwork reception, it is problematic to argue that the treaties had been morphed uniformly into a federal constitution. Instead, the rather fragile equilibrium achieved between the CJEU and a variety of national actors on which it depends for enforcement and referrals has been described as a 'constitutional practice', rather than a full-blown constitution in which power and authority is clearly delineated (Davies and Rasmussen 2014) member states' resistance to the CJEU's constitutional aspirations was not blowing into the wind. The CJEU's authority rests a great deal on the acceptance of its decisions by national actors. It must listen when agents on which it depends are reluctant to cooperate. Resistance culminated in real changes to the nature of European governance. As such, the member-state judiciaries and legal communities were equal co-authors of the supranational constitutional system, even when, in some cases, their resistance was opposed by their own national governments.

Nowhere is this clearer than in the case of Germany (Davies 2012). In this example, German judicial resistance, particularly by the German Constitutional Court, resulted in significant backlash against the constitutional aspirations of the CJEU. The particular legal-cultural context in this case was defining on the nature and ultimate success of the resistance. Germany had emerged from the Second World War morally bankrupt, divided and in search of a new 'home' for itself in the Cold War era. It found this particularly in its staunch political and economic support for European integration, and, as such, West Germany was very willing to pool sovereign competencies in the name of European unity. At the same time, part of Germany's post-war reinvention also involved its strict adherence to the rule of law, commitment to democracy and inviolable human rights provisions of its domestic constitution. The constitutionalization of EU law created a conundrum for the German legal community that proves difficult to resolve even today, namely how to honour the commitment to European integration whilst at the same time ensuring the integrity of the domestic constitutional order in the face of EU law that the CJEU claimed overruled it.

This issue came to a head in the mid-1970s, after the CJEU has issued its *Internationale Handelsgesellschaft* ruling at the request of a lower German court. In its Preliminary Ruling, the CJEU motioned that EU legal provisions

had primacy even over national constitutional law. The case involved a German firm, and, ultimately, the case was referred to the German Constitutional Court. In its own ruling in the case, the German Constitutional Court withheld the right to adjudicate on the constitutionality of EU law in Germany as long as (German: *Solange*) EU law did not have democratic and rights safeguards equivalent to those found in the German constitution. This requirement of having sufficient 'structural congruence' between national and European polities for a legitimate transfer of competencies to take place was just the next stage in an argument in the German legal academy about EU law that had been raging since the negotiation of the original treaties in the 1950s (Davies 2015).

What really stands out about the German resistance, however, was just how much impact it had. As a staunchly pro-European member state, and equally so the richest and most populous, German resistance to the constitutionalization paradigm truly mattered. Moreover, the pressure was multiplied by the fact that the Italian Constitutional Court had made a very similar ruling to its German counterpart a short time before (*Frontini v Minister delle Finanze* [1974] 2 CMLR 372 [Italian Constitutional Court]). Despite public outcry within the European Parliament and other institutions, behind the scenes, negotiations were taking place to find ways to acquiesce to the German court's admonition. Eventually, a compromise was reached that saw the supranational institutions publicly commit themselves to adhere to the European Convention on Human Rights (ECHR), and the CJEU itself followed suit by citing the ECHR in a number of cases in the late 1970s. With the inception of direct elections to the European Parliament in 1979, the German Constitutional Court felt sufficiently reassured in the democratic and rights improvements within the EU that it modified its 'Solange' demands at the next opportunity ('*Solange* II', 1986). However, the uneasy relationship between the German Constitutional Court and CJEU continues to this day as the two courts continue to find ways to exert their own authority in ways acceptable to the other.

Other historical studies have revealed that resistance to the CJEU in other member states has been different in nature, but just as fierce. In France, for instance, two competing elite groups sought to influence the European project in entirely different directions, with their accomplishments determined as much by their success in domestic politics as by any other factor. In fact, the success of Gaullist forces within France largely shaped the French reception of EU law, leading to a hostile reaction by the Conseil d'Etat and the ultimate passing of the 'Aurillac Amendment', which limited the impact of EU law in France until the mid-1980s (Bernier 2012). Equally, in the case of Denmark, an uneasy stability with the constitutionalization of EU law was achieved by political and administrative control of the Preliminary Ruling mechanism to such a degree that requests were vetted prior to being sent to Luxembourg by a special administrative committee set up by the Danish government (Pedersen 2016). This, it was hoped, would help to shield the

Danish socio-economic model from the full effects of EU legislation and prevent the kind of coalition between the CJEU and lower national courts from emerging that the Functionalists describe.

While much effort has been placed on documenting historical resistance to the constitutionalization process, equally the forces in favour of constitutionalization have also been studied. Here much attention has fallen not on the CJEU itself but rather on the actors who prompted, enabled and defended the CJEU in its constitutional ambitions. The key player in this advocacy has been the Legal Service of the European Commission. Present in all cases before the CJEU in the formative years of integration, the Legal Service has a particularly prominent position in the development of the constitutional paradigm. Its early director general, Michel Gaudet, has been cited in many studies as the driving force in the entire movement, featuring not only in the negotiation of the Treaties of Rome as a legal adviser but also pushing a seemingly reticent CJEU to adopt pro-federalist positions in cases as early as the 1950s (Rasmussen 2014). In addition, Gaudet and the Legal Service supported financially and intellectually the development of a European legal community, including the Fédération Internationale pour le Droit Européen (FIDE), an academic association which sought to evangelize and educate national legal elites on the authority of the EU legal order (Rasmussen 2012).

The CJEU itself has been the subject of some scrutiny, although for reasons mentioned above, direct research into the court can be difficult. Historians have instead focused on the biographies and writings of judges prior to and after their time on the Court (Fritz 2020). In some exceedingly rare cases, it has been possible to make educated guesses about the nature of deliberations, individual authorship of certain rulings and even voting patterns. For instance, it has been documented that the *Van Gend* decision was achieved with a very narrow 4–3 vote, with the introduction of two new judges the year before proving vital in emboldening a Court that Michel Gaudet had failed to convince in the years prior (Rasmussen 2014). Another example of indirect historical insights into the internal workings of the Court was the attribution of the aforementioned *Internationale Handelsgesellschaft* ruling to Judge Pierre Pescatore through tracking of wording in extra-judicial writings and the ruling itself (Davies and Nicola 2017). However, due to the nature of the Court's deliberations and its need for secrecy, the Court remains much of a black box to historical scholarship. The recent opening of Court archives promises to make a shift in this reality.

The picture of the CJEU itself, like the reaction of member-states judiciaries, is both varied and multifaceted. It is possible already to see clearly demarcated historical 'terms' in the functioning and outlook of the Court. For instance, we can see that despite the already well-formed ideas of the Commission's Legal Service, the CJEU refused – despite opportunity – to endorse a constitutional reading of the treaties throughout the 1950s. We might speculate either that it did not feel institutionally secure enough to

do so or perhaps that a majority of the judges felt unconvinced by the logic of the constitutional argument. We see however a shift around 1962, with the selection of Judges Robert Lecourt and Alberto Trabucchi to the Court. Within a year, the constitutional revolution was begun. The deepening of the CJEU's constitutional jurisprudence, such as the development of a human rights jurisprudence, occurred predominately in the decade between 1967 and 1976, a time when the Court was presided over by – again – Robert Lecourt and was also home to the eminently influential and charismatic Judge Pierre Pescatore (Fritz 2020). We might now recognize this as the 'Lecourt Court', analogous to the way in which legal historians of the United States refer to the Marshall or Warren Courts. This shift, we might speculate, was a result of the Court's (perhaps erroneous) perception that its initial constitutional decisions of the early 1960s had been well received - German and Italian court reactions to the constitutional decisions did not arrive until the mid-1970s. The shift in the Court's focus might also be tied to broader changes in European politics and society at the time as the intergenerational turmoil of the late 1960s brought issues of democracy, human rights, environmentalism and inclusion to the forefront. The year 1968 was both the year of mass student protest across many European capitals and the United Nations' International Year of Human Rights. We might again speculate that the judges in this atmosphere felt galvanized to develop the EU's human rights catalogue and democratic credentials, both of which were perceived to be insufficient at the time.

Pierre Pescatore warrants a particular mention in any history of EU law, being both present at the birth of the Treaty of Rome as a Luxemburgish negotiator and serving as a member of the Court for nearly two decades between 1967 and 1985 (see Figure 6.2). It was at his particular urging, enabled by the support of Robert Lecourt, the Court's president for much of the period, that the CJEU continued to build on the legal revolution begun in the mid-1960s. Pescatore was the Judge Rapporteur (the judge appointed to marshal the arguments of the parties and, crucially, to author the first draft of the judgement which the remaining judges use as their basis for deliberation) in key constitutional cases, such as the aforementioned *ERTA* and *Internationale Handelsgesellschaft*, as well as most of the prominent cases detailing the CJEU's stance on human rights protections during the 1970s. Not content with his judicial role, Pescatore also actively participated in the legal academy, attending academic conferences, delivering speeches and writing for a multitude of venues in a number of European languages. It is not an entirely unreasonable claim to suggest that Pescatore enjoyed the single most influence of any individual on the development of EU law in its history.

In recent years, attention of historical contextual research has shifted slightly away from the grand contest between constitutionalization and resistance to focus more deeply on the forces at play within individual rulings (Davies and Nicola 2017). Most notably, much scholarly attention

FIGURE 6.2 *Pierre Pescatore (1919–2010). A prolific academic and prominent political figure from Luxembourg, Pescatore was involved in the negotiations of the founding treaties in the 1950s and was appointed judge at the court in 1967. His judicial tenure lasted until 1985, in which time Pescatore's intellect and personality shaped a generation of EU jurisprudence. Courtesy of European Communities, 1975.*

has been given to the seminal *Cassis de Dijon* ruling (Case 120–78 *Rewe-Zentral AG v. Bundesmonopolverwaltung für Branntwein*), which paved the way for the mutual recognition of standards across member states (see, for instance, the collective efforts in Albors-Llorens, Barnard and Leucht 2021). Such studies of individual decisions serve as windows into the particular legal, cultural and political forces at work within an EU legal case at any one moment. They also demonstrate that despite the narrative aesthetic of a battle between opposing armies over the nature of EU law, EU law – like any legal system – is often at the mercy of radically indeterminant influences that produce sometimes unpredictable outcomes. Who might have guessed, for instance, that the Preliminary Ruling request in the *Francovich* ruling (the foundation of EU law on state liability) only reached Luxembourg because the postman in Strasbourg (home of the entirely separate European Court of Human Rights) knew where to correctly redirect it (Davies and Nicola 2017)? Or that the Chinese immigrant involved in the *Chen* decision, vilified by the Irish and British press as an economic migrant, was in fact a wealthy Chinese millionaire seeking to escape the constraints of China's one-child policy (Davies and Nicola 2017)? Such insights not only add colour and life to the study of what might be a rather formal and dry subject but also show

that reliance on grand narratives in historical retelling can come at the cost of losing the finer details involved.

Much research remains to be done both into the individual cases before the Court and into those broader forces shaping the success and failure of the Court's interpretation. Of particular interest now is the rough decade starting in 1986 with the Single European Act and ending with the introduction of the Maastricht Treaty. This is when European integration was given new impetus, the initial constitutional rulings of the CJEU were seemingly accepted (see the German case) and the reintroduction of qualified majority voting occurred. How this impacted the Court and the member states it interacted with is especially crucial in understanding the development of EU law in the post-Maastricht era. Equally, more work remains to be done on the very earliest years of the CJEU and how it found its own voice as an entirely new judicial institution. Finally, the history of EU law needs to be contextualized into the broader legal history of the twentieth century. The CJEU was by no small measure the only new court in this time period, and placing the development of EU law – clearly a conspicuous and unique phenomena – within a broader framework of Cold War relations, international judicialization and other socio-economic pressures is crucial for a holistic understanding of this story. This wider contextualization of the CJEU's evolution is a point most clearly articulated recently by Karen Alter (2021).

Conclusion

The CJEU has been a key motor driving European integration by locking in the legal obligations imposed by the European institutions and enabling European citizens to use rights granted by EU law. Distanced from the political machinery in Brussels and Strasbourg, the Luxembourg panel has sought to play the role of a neutral umpire, adjudicating only the law and the strengths and weaknesses of the arguments bought before it. However, the CJEU is a product and servant of the treaties and their pursuit for ever closer, ever deeper union. Trying to serve as a dispassionate panel of adjudication whilst being bound by the foundational logic of integration places the Court in a fascinating ontological tension, making it worthy of our historical study and continued observation. Adding in the extra tensions caused by the need for cooperation from national judiciaries and legal elites places the CJEU at the heart of the question of what it means to be a supranational institution.

The Court's success in the past will create new problems for it in the future. As more and more citizens feel the impact of EU legislation in their daily lives, the Court's decisions will resonate ever more deeply with the public. Public and political review of the Court, its judges and its decision-making processes will increase, eventually even perhaps becoming akin to the scrutiny given to the US Supreme Court. The Court's gain in power featured prominently in the arguments of those opposed to continued

membership of the EU during the UK's 2016 Brexit referendum. The judicial appointment process may become more politicized, questions will arise about the demographic representativeness of the Court and almost certainly the Court will be asked to review its rather opaque voting mechanisms. As a key driver of integration, the Court will also likely step more into the crosshairs of those who are resistant to integration, as was the case during the Brexit referendum debates, and those who wish to relocate competencies back to the member-state level, particularly those constitutional or supreme courts who feel their raison d'être having been usurped by the rise of the Luxembourg institution.

Five key questions

1. Why did legal mechanisms become such a prominent feature of European integration?
2. What factors gave the Court the ability to become a key motor of integration?
3. To what extent can it be argued that the ITL scholarship assumed a key role in this process?
4. Has the Court's success in driving integration, even in the face of political or popular reticence, strengthened the Union?
5. As EU law reaches ever more deeply into the lives of European citizens, what challenges will the Court begin to face?

Note

1 To reflect its focus on the legal development of the EU, this chapter – exceptionally – refers to articles from the most recent version of the treaty, which is in line with conventions in legal scholarship.

Ten key readings

Alter, K. (2001), *Establishing the Supremacy of European Law: The Making of an International Rule of Law in Europe*, Oxford: Oxford University Press.

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Davies, B. (2012), *Resisting the European Court of Justice: West Germany's Confrontation with European Law 1949–1979*, Cambridge: Cambridge University Press.